

STATE OF NEW YORK

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2025-2026 Regular Sessions

IN SENATE

(Prefiled)

January 8, 2025

Introduced by Sen. COMRIE -- read twice and ordered printed, and when printed to be committed to the Committee on Energy and Telecommunications -- reported favorably from said committee, ordered to first and second report, ordered to a third reading, amended and ordered reprinted, retaining its place in the order of third reading

AN ACT to amend the public service law, in relation to building make-ready electrical infrastructure for the charging of electric vehicles for public serving fleet vehicles

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

Section 1. The public service law is amended by adding a new section 66-x to read as follows:

§ 66-x. Make-ready electrical infrastructure. 1. Legislative intent and purpose. It is the intent and purpose of this section to implement cost effective and unified treatment by electric corporations of electrical distribution infrastructure, and certain customer-owned make-ready infrastructure, needed to charge electric public serving fleet vehicles; and provide for certain costs of such infrastructure to be included in electric corporations' rate bases and generally recovered through rates or surcharges, instead of directly from the public serving fleet customers served by such infrastructure. Nothing in this section shall modify any obligation of an electric corporation to provide a full and accurate accounting of costs related to electrical distribution infrastructure needed to charge electric vehicles.

2. Definitions. For the purposes of this section the following terms shall have the following meanings:

(a) "Electrical distribution infrastructure" means any utility facilities used to distribute electric service to customers, and includes poles, vaults, service drops, transformers, mounting pads, trenching,

EXPLANATION--Matter in italics (underscored) is new; matter in brackets [-] is old law to be omitted.

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1 conduit, wire, cable, meters, other equipment as necessary, and associ-
2 ated engineering and civil construction work.

3 (b) "Utility-owned make-ready costs" means any capital investment in
4 electrical distribution infrastructure needed to connect and serve a new
5 electric vehicle charger, including step down transformers, overhead
6 service lines, and utility meters.

7 (c) "Customer-owned make-ready costs" means any capital investment in
8 equipment or infrastructure beyond the utility service point necessary
9 to make a site ready to accept an electric vehicle charger, including
10 conductors, trenching, and panels.

11 (d) "Disadvantaged community" means a community defined as a disadvan-
12 taged community under article seventy-five of the environmental conser-
13 vation law.

14 (e) "Public serving fleet" means a fleet of vehicles owned, leased, or
15 contracted by the state, any municipality, public authority or school
16 district.

17 3. Reasonable efforts required. Electric corporations shall make
18 reasonable efforts to ensure that any infrastructure built pursuant to
19 this section is efficiently sized and operated. Such efforts may
20 include, but not be limited to, considering customers' reasonably fore-
21 seeable load management activities and deployments of distributed energy
22 resources.

23 4. Application. No later than sixty days after the effective date of
24 this section, all electric corporations shall file an application with
25 the commission to establish a tariff that shall replace the line exten-
26 sion rules currently used by such electric corporations. Such tariff, at
27 a minimum, shall:

28 (a) provide for such electric corporation to deploy or reimburse the
29 customer's reasonable costs, subject to reasonable conditions, of
30 customer-side make-ready infrastructure for public serving fleets;

31 (b) authorize such electric corporation to include in its rate base
32 one hundred percent of all reasonable and prudent utility-owned make-
33 ready costs incurred to serve electric vehicle charging loads of public
34 serving fleets;

35 (c) authorize such electronic corporation to include in its base rate
36 of reasonable and prudent customer-side make-ready costs needed to
37 prepare a public serving fleet's site for electric vehicle charging in
38 the following manner:

39 (i) a minimum fifty percent or higher where authorized by the commis-
40 sion, of reasonable customer-owned make-ready costs in locations that
41 are not within a disadvantaged community or a disadvantaged community
42 zone;

43 (ii) a minimum ninety percent, or higher where authorized by the
44 commission, of reasonable customer-owned make-ready costs located within
45 a disadvantaged community or disadvantaged community zone; and

46 (d) provide that the portion of customer-owned make-ready costs
47 included in the electric corporation's rate base shall not be charged
48 directly or solely to the customer served by such make-ready infrastruc-
49 ture; except where the customer is not a public entity, and within ten
50 years of receiving a customer-side make-ready incentive at a location
51 pursuant to this section, reduces the number of electric public serving
52 fleet vehicles operating at such location. The tariff shall provide for
53 the electric corporation to recover a prorated portion of the customer-
54 side make-ready incentive directly from the customer in such instance.

55 5. Disadvantaged community zone. For the purposes of this section the
56 commission shall define the term "disadvantaged community zone".

1 6. Cost treatment and recovery for utility-owned make-ready costs. All
2 electric corporations shall maintain budgets for its costs incurred
3 under this section. The portion of customer-owned make-ready costs
4 incurred by an electric corporation pursuant to subdivision four of this
5 section shall be treated in accordance with a depreciation or amorti-
6 zation schedule as authorized by the commission. Any electric corpo-
7 ration may recover the incremental revenue requirement associated with
8 such costs through a surcharge mechanism until its base rates are reset.
9 Any electric corporation seeking to recover such costs through a
10 surcharge mechanism shall include such proposal as part of its applica-
11 tion filed pursuant to subdivision four of this section.

12 7. Approval of tariffs. The commission shall, after notice and oppor-
13 tunity for public comment and within ninety days of the filing of the
14 tariff, approve, or modify and approve, such tariff.

15 § 2. This act shall take effect immediately.